

MyHOAAppeal - Educational worksheet

Condominium vs HOA Fine Differences

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about unit vs lot enforcement and shared elements. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of unit vs lot enforcement and shared elements.
- * Make the decision point explicit: Your appeal should answer whether condo or HOA rules apply to your fine with exhibits, not a debate.
- * Compare options deliberately: Know whether you are closer to Condo unit fine, HOA lot fine, or Shared-element dispute before deciding.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to unit vs lot enforcement and shared elements.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about unit vs lot enforcement and shared elements. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on unit vs lot enforcement and shared elements.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether condo or HOA rules apply to your fine.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around unit vs lot enforcement and shared elements.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether condo or HOA rules apply to your fine, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to unit vs lot enforcement and shared elements
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address whether condo or HOA rules apply to your fine
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether condo unit fine or hoa lot fine better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing unit vs lot enforcement and shared elements arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether condo or HOA rules apply to your fine.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on unit vs lot enforcement and shared elements; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around unit vs lot enforcement and shared elements.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on unit vs lot enforcement and shared elements. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering unit vs lot enforcement and shared elements?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run this tree for unit vs lot enforcement and shared elements. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about unit vs lot enforcement and shared elements.

Q (quality): Does your packet clearly address whether condo or HOA rules apply to your fine?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue unit vs lot enforcement and shared elements. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on unit vs lot enforcement and shared elements, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve unit vs lot enforcement and shared elements arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Condo unit fine | HOA lot fine | Shared-element dispute

Typical signal

[Condo unit fine] Clear written basis for condo unit fine

[HOA lot fine] Partial or contested basis for hoa lot fine

[Shared-element dispute] High risk if you only have shared-element dispute

Owner priority

[Condo unit fine] Preserve condo unit fine with indexed proof

[HOA lot fine] Convert hoa lot fine into a documented record
[Shared-element dispute] Do not rely on shared-element dispute alone
Board / manager reaction
[Condo unit fine] Harder to dismiss when exhibits are complete
[HOA lot fine] May stall or ask for more information
[Shared-element dispute] Often treated as insufficient without follow-up writing
Next educational move
[Condo unit fine] Advance the formal path for unit vs lot enforcement and shared elements
[HOA lot fine] Send a clarifying letter addressing whether condo or HOA rules apply to your fine
[Shared-element dispute] Collect missing documents before arguing substance
Escalation risk if ignored
[Condo unit fine] Lower if you stay on deadline
[HOA lot fine] Medium - ambiguity can harden into denial
[Shared-element dispute] Higher - shared-element dispute gaps feed collections narratives

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